

Tentative Rulings for June 10, 2026 Department 10

**To request oral argument, you must notify Judicial Secretary
Crystal Marias at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 10 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **161 888 5460**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

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CASE #	CASE NAME	HEARING NAME
CVRI2501918	CONTRERAS VS VILLANUEVA	MOTION TO ADOPT APPRAISED FAIR MARKET VALUE

Tentative Ruling: The Court DENIES without prejudice the Motion to Adopt Appraised FMV because the Motion is procedurally defective.

The Partition of Real Property Act's (C.C.P. § 874.311, *et seq.* ("PRPA")) statutory mechanism states that after a court orders an appraisal to determine the fair market value of a property under C.C.P. § 874.316(d), "[o]n completion of the appraisal, the appraiser shall file a sworn or verified appraisal with the court." (C.C.P. § 874.316(d).) No later than 10 days after the appraisal is filed, the Court "shall send notice to each party with a known address, stating all of the following: (1) The appraised fair market value of the property; (2) That the appraisal is available at the court clerk's office; (3) That a party may file with the court an objection to the appraisal not later than 30 days after the notice is sent, stating the grounds for the objection." (C.C.P. § 874.316(e).) No sooner than 30 days after a copy of the notice is sent to each party, the Court *shall* conduct a hearing to determine the fair market value of the Property, whether an objection to the appraisal is filed. (C.C.P. § 874.316(f).) Only after this hearing has occurred, but before considering the merits of the underlying partition action, shall the Court determine the fair market value of the Property. (C.C.P. § 874.316(g).)

In this case, there is no evidence that the appraiser has filed a sworn or verified appraisal with the Court, as required under C.C.P. § 874.316(d). Although a copy of the appraisal report is attached to Contreras' motion, there is no supporting sworn declaration from Mowery. Accordingly, the Court **DENIES** the motion without prejudice.

As to the issue of an accounting, it is premature at this stage. Specifically, "the court shall determine the fair market value of the property" after the appraisal hearing, "but *before* considering the merits of the partition action." (C.C.P. § 874.316(g) [emphasis added].) Here, the Court has not yet held the appraisal hearing or determined the fair market value of the property. Accordingly, the Court need not address the parties' arguments regarding the merits of the partition action, including any requests for accounting or apportionment, at this stage.